

Case :- CONTEMPT APPLICATION (CIVIL) No. - 255 of 2023

Applicant :- Smt. Hardei

Opposite Party :- Prem Pal Singh, Executive Engineer, Electricity Distribution Division II

Counsel for Applicant :- Rajneesh Kumar Sharma

Hon'ble Piyush Agrawal,J.

Heard learned counsel for the applicant.

This contempt application has been filed for punishing the opposite party for willful disobedience of the order dated 17.5.2022 passed by this Court in Civil Misc. Writ C No. 6224 of 2022, wherein this Court has observed as under:

"In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed of giving liberty to the petitioner to submit her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.4, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner. "

It is stated that in spite of service upon the opposite party on 7.6.2022, no order has yet been passed.

Prima facie, a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of this Court within two months from the date of production of a copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a recorded thereof.

The opposite party shall comply with the directions of the writ court and intimate him of the order through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite party within the stipulated time as aforementioned.

Order Date :- 17.1.2023

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